
COUNTY COURT

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] LEXBY-FI 10

IN THE MATTER OF

Interpretive reference (Principal-directed) on the SCOPE of the design-harvest duty fixed prospectively by [2026] LEXBY-FI 3 as varied by [2026] LEXBY-SC 2 on the [2026] LEXBY-FI 8 frontispiece. Does the standing instruction to "harvest ALL design primitives AND compositions" require a FIDELITY / like-for-like recreation of the legacy Opbox/Onyx design IN THE SPEC (such that the harvest spec docs/spec/_harvest/onyx-composition-harvest.md is under-discharged wherever the built recreation materially diverges from legacy on the named dimensions: font sizes/type scale, the dotted background, sidebar shape, the primitives, spacing, palette, radii, shadows), OR is the harvest duty satisfied by capturing the CATEGORIES of primitives and compositions (a faithful re-expression in the new Solid stack) WITHOUT like-for-like fidelity to legacy values, OR a calibrated middle; and what consequent remedy (audit + amend + correct, vs none) is owed.

Before:

Coade J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

1. This court was asked to rule upon the following question: Interpretive reference (Principal-directed) on the SCOPE of the design-harvest duty fixed prospectively by [2026] LEXBY-FI 3 as varied by [2026] LEXBY-SC 2 on the [2026] LEXBY-FI 8 frontispiece. Does the standing instruction to "harvest ALL design primitives AND compositions" require a FIDELITY / like-for-like recreation of the legacy Opbox/Onyx design IN THE SPEC (such that the harvest spec docs/spec/_harvest/onyx-composition-harvest.md is under-discharged wherever the built recreation materially diverges from legacy on the named dimensions: font sizes/type scale, the dotted background, sidebar shape, the primitives, spacing, palette, radii, shadows), OR is the harvest duty satisfied by capturing the CATEGORIES of primitives and compositions (a faithful re-expression in the new Solid stack) WITHOUT like-for-like fidelity to legacy values, OR a calibrated middle; and what consequent remedy (audit + amend + correct, vs none) is owed.

2. **RATIO DECIDENDI:** On a design-harvest duty operationalising the prospective S-8 duty of [2026] LEXBY-FI 3 (as varied by [2026] LEXBY-SC 2) on the [2026] LEXBY-FI 8 frontispiece, the duty is **NEITHER** pixel-identity to legacy values (framing A) **NOR** mere capture of abstract categories (framing B); it is discharged by **FAITHFUL RE-EXPRESSION OF THE LEGACY DESIGN CHARACTER** across the stack change, and the governing test of under-discharge is **MATERIAL DIVERGENCE**: a built value falls below the duty only where, judged on found fact (CA 1) and not on labelling, it departs from the legacy design **CHARACTER** on a named dimension (type scale/voice, palette, density/spacing, radii, shadows, the canvas, the signature primitives and their composition) such that the harvested identity is no longer carried, **OR** where the build departs from a value the harvest spec **ITSELF** normatively fixes for a **NAMED** primitive (S-15(4): a named acceptance value, not a descriptive legacy note, governs that primitive). A re-expression that preserves the design character and honours every spec-fixed named value is performance, not under-discharge, even though particular legacy bytes are not reproduced (S-5 Bolam proviso: cross-stack recreation within competent practice); and where the harvest is an inherently sequenced workstream with composition beats expressly distinguished as outstanding, an as-yet-unbuilt deferred composition primitive is incomplete-in-proper-order under S-15(3), not a falling-below. Applying that test to the ground truth: (i) the PageHead title is **NOT** a divergence (the named primitive `.page-head__title` renders at 28px, matching the harvest md and legacy; the 26px figures pleaded are generic h1 rules on non-PageHead surfaces, not the harvested primitive); (ii) the dotfield is **NOT** an invented divergence (it is defined in legacy `app/globals.css` and rendered by legacy `AppBackdrop.tsx` and was harvested; the minor opacity delta 12%/7% built vs 14%/8% legacy preserves character and does not bite); (iii) the absent `--sidebar-bg/fg/accent/muted/border` token structure **IS** a genuine divergence on a named dimension, but it lies on the sidebar/ContextRail composition beats the spec itself expressly defers (sections 4 and 6), so it is owed-and-outstanding performance in proper order (S-15(3)), not a present falling-below. The spec is therefore **NOT** under-discharged as to (i) and (ii) and is **NOT EXHAUSTED** as to (iii); the continuing S-8 duty to complete the deferred sidebar-token/ContextRail composition to legacy character (the role-token structure) is unaffected and is the operative direction. No fresh re-skin, no like-for-like pixel audit, and no breach are required.

3. OBITER DICTA: 1. The matter's pleaded premises are partly displaced by the ground truth (CA 1): the "26px built vs 28px" PageHead charge rests on a misidentification (a generic h1, not the named primitive, which is 28px), and the dotfield was harvested from legacy, not invented. A Principal reference that asserts divergence should be ground-truthed against the named primitive in the built component, not against an adjacent or generic rule that happens to share a tag. 2. The line between a SPEC-FIXED named value (which binds the build under S-15(4)) and a DESCRIPTIVE legacy note (which informs character but does not lock a byte) is drawn by the spec's own register: a value stated in a primitive's normative slot/CSS contract (e.g. the harvest md's 28px display in the PageHead contract) binds that primitive; a value recited only as a description of legacy in the density/voice prose is character guidance, not a pixel-lock. The drafter holds the editorial pen on which dimensions are normative. 3. The moat rationale (the legacy design is the differentiator) is fully served by character-fidelity plus spec-fixed named values: the differentiator is the harvested identity (the serif/grotesque/mono type roles, the austere accent-only palette, the tight density, the floating-card-over-dotfield canvas, the ProcessSpine signature), not the reproduction of every legacy byte across a deliberate stack change; reading in like-for-like pixel fidelity would resurrect the SC-2 "counsel of perfection" the Supreme Council cautioned against and would invert the CA-2 sequencing law by demanding pixel-perfection before composition. 4. The framing-A respondent's S-11(b)/S-11(e) strike motions are refused: the reference raises a genuine first-impression axis (fidelity standard of the harvested VALUES) that FI 9 obiter (2) expressly reserved rather than disposed of, so it is neither settled re-litigation nor reached in ignorance of binding law.

On a design-harvest duty operationalising the prospective S-8 duty of [2026] LEXBY-FI 3 (as varied by [2026] LEXBY-SC 2) on the [2026] LEXBY-FI 8 frontispiece, the duty is NEITHER pixel-identity to legacy values (framing A) NOR mere capture of abstract categories (framing B); it is discharged by FAITHFUL RE-EXPRESSION OF THE LEGACY DESIGN CHARACTER across the stack change, and the governing test of under-discharge is MATERIAL DIVERGENCE: a built value falls below the duty only where, judged on found fact (CA 1) and not on labelling, it departs from the legacy design CHARACTER on a named dimension (type scale/voice, palette, density/spacing, radii, shadows, the canvas, the signature primitives and their composition) such that the harvested identity is no longer carried, OR where the build departs from a value the harvest spec ITSELF normatively fixes for a NAMED primitive (S-15(4): a named acceptance value, not a descriptive legacy note, governs that primitive). A re-expression that preserves the design character and honours every spec-fixed named value is performance, not under-discharge, even though particular legacy bytes are not reproduced (S-5 Bolam proviso: cross-stack recreation within competent practice); and where the harvest is an inherently sequenced workstream with composition beats expressly distinguished as outstanding, an as-yet-unbuilt deferred composition primitive is incomplete-in-proper-order under S-15(3), not a falling-below. Applying that test to the ground truth: (i) the PageHead title is NOT a divergence (the named primitive .page-head__title renders at 28px, matching the harvest md and legacy; the 26px figures pleaded are generic h1 rules on non-PageHead surfaces, not the harvested primitive); (ii) the dotfield is NOT an invented divergence (it is defined in legacy app/globals.css and rendered by legacy AppBackdrop.tsx and was harvested; the minor opacity delta 12%/7% built vs 14%/8% legacy preserves character and does not bite); (iii) the absent --sidebar-bg/fg/accent/muted/border token structure IS a genuine divergence on a named dimension, but it lies on the sidebar/ContextRail composition beats the spec itself expressly defers (sections 4 and 6), so it is owed-and-outstanding performance in proper order (S-15(3)), not a present falling-below. The spec is therefore NOT under-discharged as to (i) and (ii) and is NOT EXHAUSTED as to (iii); the continuing S-8 duty to complete the deferred sidebar-token/ContextRail composition to legacy character (the role-token structure) is unaffected and is the operative direction. No fresh re-skin, no like-for-like pixel audit, and no breach are required.

OBITER DICTA

1. The matter's pleaded premises are partly displaced by the ground truth (CA 1): the "26px built vs 28px" PageHead charge rests on a misidentification (a generic h1, not the named primitive, which is 28px), and the dotfield was harvested from legacy, not invented. A Principal reference that asserts divergence should be ground-truthed against the named primitive in the built component, not against an adjacent or generic rule that happens to share a tag. 2. The line between a SPEC-FIXED named value (which binds the build under S-15(4)) and a DESCRIPTIVE legacy note (which informs character but does not lock a byte) is drawn by the spec's own register: a value stated in a primitive's normative slot/CSS contract (e.g. the harvest md's 28px display in the PageHead contract) binds that primitive; a value recited only as a description of legacy in the density/voice prose is character guidance, not a pixel-lock. The drafter holds the editorial pen on which dimensions are normative. 3. The moat rationale (the legacy design is the differentiator) is fully served by character-fidelity plus spec-fixed named values: the differentiator is the harvested identity (the serif/grotesque/mono type roles, the austere accent-only palette, the tight density, the floating-card-over-dotfield canvas, the ProcessSpine signature), not the reproduction of every legacy byte across a deliberate stack change; reading in like-for-like pixel fidelity would resurrect the SC-2 "counsel of perfection" the Supreme Council cautioned against and would invert the CA-2 sequencing law by demanding pixel-perfection before composition. 4. The framing-A respondent's S-11(b)/S-11(e) strike motions are refused: the reference raises a genuine first-impression axis (fidelity standard of the harvested VALUES) that FI 9 obiter (2) expressly reserved rather than disposed of, so it is neither settled re-litigation nor reached in ignorance of binding law.

GOOD-LAW

Citation: [2026] LEXBY-FI 10

PROGRESSION *Refers weightier or rule-setting questions up to the relevant High Court Division (s. 22).*

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

The Principal asked the court to settle what the standing "harvest all design primitives and compositions" duty actually requires when rebuilding the old Opbox/Onyx look in the new Solid stack: must the rebuild match the legacy design pixel-for-pixel (font sizes, the dotted background, sidebar shape, spacing, palette, radii, shadows), or is it enough to capture the general categories of design elements, or something in between? The reference had standing and was decided by fresh deliberation, since it raised a genuinely new question (the fidelity standard for harvested values) that an earlier ruling had left open. The court held the duty is neither pixel-perfect copying nor mere abstract category-capture: it is discharged by faithfully re-expressing the legacy design character across the stack change, and a built value only falls short where it actually departs from that character on a named dimension, or where it breaks a value the harvest spec itself normatively fixes for a named element. Applying that to the facts, the court found two of the three complaints did not hold up: the PageHead title renders at 28px (matching legacy and the spec; the 26px figures were from generic, unrelated heading rules), and the dotted background was genuinely harvested from legacy, not invented (the small opacity difference does not bite). The third item, the missing sidebar role-token structure, is a real gap, but it sits on the sidebar/ContextRail work the spec expressly defers, so it counts as work owed-and-still-to-come in proper sequence, not a failure. The spec is therefore not under-discharged on the first two points and not yet complete on the third.

WHAT THIS MEANS IN PRACTICE

No re-skin, no pixel-by-pixel audit, and no breach finding are required: you do not need to chase legacy values byte-for-byte. The one live action is to finish the deferred sidebar-token and ContextRail composition so it carries the legacy design character (the role-token structure), which remains an outstanding obligation under the continuing harvest duty.

APPEAL ROUTE

Yes. This is a First Instance ruling, so a party may seek permission to appeal to the Court of Appeal under VPR 3 / s. 10. Permission requires an arguable point of law (for example, that the "material divergence / faithful re-expression" standard is the wrong legal test) or a conflict with binding precedent; it is not a route to re-argue the factual findings on the PageHead, dotfield, or sidebar.